

Warsaw, December 22, 2023

Decision

DKE.561.5.2023

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2023, item 775, as amended) in connection with Article 7(1) and (2) and Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws 2019, item 1781, consolidated text) and based on Article 57(1)(a) and (h), Article 58(2)(b) in connection with Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as the "Regulation 2016/679", after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Ms. S. P., residing in N. at ul. (...) (previously conducting business under the name W. with its registered office in W. at ul. (...)), represented by attorney J. K., the President of the Personal Data Protection Office issues a warning to Ms. S. P., residing in N. at ul. (...) for violating the provisions of Article 58(1)(a) and (e) of Regulation 2016/679, consisting of failing to provide the President of the Personal Data Protection Office access to personal data and information necessary for the performance of his tasks in the proceedings with reference number DS.523.4217.2022.

JUSTIFICATION

Factual Background

On July 21, 2022, a complaint was submitted to the President of the Personal Data Protection Office (hereinafter referred to as "the President of UODO", "the Authority") by Ms. M. B., residing in M., W. (hereinafter referred to as "the Complainant") regarding irregularities in the processing of her personal data by Ms. S. P., residing in N. at ul. (...) (previously conducting business under the name W. with its registered office in W. at ul. (...)) (hereinafter referred to as "the Administrator"), consisting of failing to fulfill the information obligation towards the Complainant resulting from Article 13(1) and (2) of Regulation 2016/679 and not addressing the request of the Complainant submitted under Article 15(3) of Regulation 2016/679 regarding obtaining a copy of the data being processed. In connection with the above, in order to examine the allegations raised by the Complainant, the President of UODO initiated explanatory proceedings with reference number DS.523.4217.2022.

As part of the aforementioned proceedings – acting under Article 58(1)(a) and (e) of Regulation 2016/679 – the President of UODO, by letter dated August 24, 2022, summoned the Administrator to respond to the content of the complaint and to provide explanations:

- 1) "when, on what legal basis, from what source, for what purpose and to what extent did you obtain the Complainant's personal data, including whether you obtained data regarding her health status for the purpose of providing the service;
- 2) whether and if so, on what legal basis, for what purpose and to what extent are you currently processing the Complainant's personal data, including data regarding her health status obtained in connection with the provided service, and how long will this data be processed by you;
- 3) whether, and if so, when and in what manner did you fulfill the information obligation towards the Complainant when obtaining personal data of the data subject, i.e. as referred to in Article 13(1) and (2) of Regulation 2016/679 (e.g., did you place an information board, what information did you include on it – please send a copy of the document confirming the completion of the above action, if it was completed);
- 4) The Complainant indicated that on (...) April 2022, she addressed you with a request for obtaining a copy of the data being processed submitted under Article 15(3) of Regulation 2016/679, whether and if so, when and in what manner you responded to the aforementioned request (including if the request of the Complainant was denied, please indicate the reasons for this denial). Additionally, please indicate in what form the request was submitted and in what form you provided your response (e.g., orally, in

writing) – I request that you send a complete copy of the correspondence between you and the Complainant related to her request and your response, in the event that it was conducted in writing."

This summons was sent to the Administrator's residence address, i.e., ul. (...), N., and after two unsuccessful delivery attempts, it was returned to the Personal Data Protection Office (hereinafter referred to as "UODO") on September 15, 2022, with the annotation "RETURNED not collected in time", and it should be considered duly delivered to the Administrator, in accordance with the wording of Article 44 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2023, item 775, as amended) (hereinafter referred to as "k.p.a."). The Administrator did not respond in any way to the Authority's request within the time limit set for taking the actions to which he was summoned, i.e., within 7 days from the date of delivery of the summons.

In light of the above – by letter dated September 21, 2022 –

President of the UODO once again requested the Administrator to respond to the content of the complaint and to provide explanations as in the summons of August 24, 2022 (see point 2 of the justification of this decision), which were necessary for the Authority to assess the validity of the complaint in the administrative proceedings with reference number DS.523.4217.2022. Similarly to the first summons, the summons of September 21, 2022, was sent to the Administrator's residence address and was not collected by him. This correspondence, after two unsuccessful notifications, was returned on October 18, 2022, to the UODO with the annotation "RETURNED not collected in time" (see point 2 of the justification of this decision), and was subsequently deemed to have been duly delivered to the Administrator, in accordance with Article 44 of the Administrative Procedure Code (k.p.a.) by means of substitute delivery. The Administrator did not respond to this letter either.

The summons directed to the Administrator in the proceedings with reference number DS.523.4217.2022 – i.e., both the letter of August 24, 2022, and September 21, 2022 – contained a notice indicating that failure to provide explanations in the matter could result in the imposition of an administrative monetary penalty on the Administrator in accordance with Article 83(5)(e) of Regulation 2016/679.

The above factual circumstances were established by the President of the UODO based on the entirety of the official correspondence sent by the President of the UODO to the Administrator, which is included in the case files of the proceedings with reference number DS.523.4217.2022. This correspondence reflects the totality of attempts by the President of the UODO to gain access to personal data and information necessary to fulfill his tasks – that is, to consider the case with reference number DS.523.4217.2022. On the other hand, it reflects the lack of response from the Administrator to the requests of the President of the UODO in this administrative proceeding.

Proceedings

Due to the failure of the Administrator to provide the information necessary to resolve the case with reference number DS.523.4217.2022, the President of the UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding with reference number DKE.561.5.2023, concerning the imposition of an administrative monetary penalty on the Administrator for violating Article 58(1)(a) and (e) of Regulation 2016/679. The Administrator was informed of the initiation of the proceedings by a letter dated February 15, 2023 (reference: DKE.561.5.2023). In this letter, the Administrator was obliged – for the purpose of determining the basis for the penalty, based on Article 101a(1) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781, consolidated text, hereinafter referred to as "u.o.d.o.") – to provide information about the income he achieved in 2022. The Administrator was also informed that the submission of comprehensive explanations, which the President of the UODO had previously requested in the administrative proceedings with reference number DS.523.4217.2022, could mitigate the administrative monetary penalty imposed in this proceeding or could result in the decision to refrain from imposing it. Furthermore, the Administrator was advised of the possibility to express his opinion – before the issuance of the administrative decision – regarding the collected evidence and materials as well as the submitted requests.

The information about the initiation of the proceedings and the collection of evidence dated February 15, 2023, with reference number DKE.561.5.2023, was sent to the Administrator's residence address (see points 2 – 3 of the justification of this decision). This correspondence, after two unsuccessful notifications, was returned on March 20, 2023, to the UODO with the annotation "RETURNED not collected in time" (see points 2 – 3 of the justification of this decision), and was subsequently deemed to have been duly delivered to the Administrator, in accordance with Article 44 of the k.p.a. by means of substitute delivery. Consequently, the Administrator did not respond to this information regarding the initiation of the proceedings.

Due to the lack of receipt of correspondence by the Administrator, the President of the UODO, in order to obtain the necessary information to assess the validity of the complaint in the administrative proceedings with reference number DS.523.4217.2022, addressed the Administrator by letters dated April 5, 2023, which were sent to addresses where there was a high probability of finding the Administrator, namely ul. (...), W. and ul. (...), W. In their content, the Authority requested the Administrator to contact them to provide explanations and also attached a copy of the letter informing about the initiation of the proceedings and the collection of evidence dated February 15, 2023 (see point 6 of the justification of this decision). This correspondence was delivered on April 11, 2023, and led to contact from the Administrator in this administrative proceeding.

In response to the letters dated April 5, 2023 (see point 7 of the justification of this decision), attorney J. K. (Law Firm (...), ul. (...), W.), authorized to represent the Administrator in the administrative proceedings with reference number DKE.561.5.2023, submitted explanations on April 19, 2023. He primarily indicated that the personal data of the Complainant are not processed by the Administrator, as they have been removed from the databases and there is no other legal successor. In this letter, the Administrator's representative indicated that since (...) October 2021, the Administrator has ceased conducting business activities, hence he believes there are doubts regarding the appropriateness of delivering correspondence to the address of the permanent place of business that has already been removed from the CEIDG Business Register, namely ul. (...), W. The President of the UODO, by letter dated April 27, 2023, summoned attorney...

J. K., authorized to represent the Administrator, to supplement the explanations from April 19, 2023 (see point 8 of the justification of this decision), in particular to provide answers to the questions in points 1) – 4) contained in the information on the initiation of proceedings and the gathering of evidence from February 15, 2023 (see point 6 of the justification of this decision), and also explained the course of the administrative proceedings under case number DS.523.4217.2022 and the proceedings under case number DKE.561.5.2023. In this letter, the Authority justified why it delivered correspondence dated April 5, 2023, to the addresses of the permanent places previously used by the Administrator for business activities (see point 18 of the justification of this decision). This summons was sent to the address indicated in the letter from attorney J. K. dated April 19, 2023, at the Law Firm (...) – ul. (...), W. and was delivered on May 5, 2023.

In response to the summons from the President of the UODO regarding case number DKE.561.5.2023 to supplement the explanations from April 27, 2023 (see point 9 of the justification of this decision), attorney J. K. provided a response in a letter dated May 11, 2023, to the questions posed in the information on the initiation of proceedings and the gathering of evidence (see point 6 of the justification of this decision) as follows:

- 1) The Administrator obtained the personal data of the Complainant just before the scheduled cosmetic visit, directly in the office on (...) June 2020, in the form of a completed patient card, which contained personal data such as: first name and surname, year of birth, phone number, and "[...] other, confirming that there are no contraindications to perform the given service."
- 2) The Administrator "[...] processes the personal data of the Complainant for archival (evidential) purposes, which is the implementation of securing information in case of a legal need to demonstrate facts, including confirming familiarization with the information clause by requesting first name, surname, phone number, email address, and the service performed."

3) The Administrator fulfilled the information obligation towards the Complainant through the information clause, which was placed in the patient card. The performance of the service is possible after filling out the patient card and "[...] acceptance by confirming familiarization with the content of the attached clause." During the conduct of its business activities, the Administrator also fulfilled this obligation by means of a printed "[...] information on the rules of processing and the rights of the person to whom the data pertains" placed on the reception desk of the premises.

4) The Administrator has no knowledge regarding the request directed by the Complainant to him for the removal of her personal data. He also indicated that if such a request was sent to the address: ul. (...), W., it was not addressed in a timely manner due to the cessation of business activities by the Administrator, and thus he also did not have legal title to the property at the above-mentioned address; therefore, attorney J. K. stated that the Administrator could not take up the subject correspondence. A copy of the patient card of the Complainant was attached to these explanations.

Due to the necessity to supplement the evidence, in letters dated June 29, 2023, and August 4, 2023, the Administrator's representative submitted additional explanations to the case under number DS.523.4217.2022, indicating that the Administrator removed the personal data of the Complainant from the "Client Database" and maintained his position regarding the processing of the Complainant's personal data as outlined in the letter dated May 11, 2023 (see point 10 of the justification of this decision) based on Article 5(1) of Regulation 2016/679, for archival (evidential) purposes for a period of 5 years, which constitutes the limitation period for potential claims. He also stated that the Administrator did not maintain and does not possess the medical documentation of the Complainant, as the Administrator never kept medical documentation. He indicated that the documentation was kept by the Administrator in a general manner, in paper form, and each client scheduling a consultation or cosmetic service was asked to fill out a form providing their first name and surname, year of birth, phone number, and whether they have allergies or diseases that would prevent the application of a given cosmetic treatment, or changes in the facial area, confirming that there are no contraindications to perform the given service (the so-called prequalification for the treatment). The Administrator, apart from the above documentation, did not keep documentation describing the course, effects, or means used, as the services provided by the Administrator are non-invasive services and do not constitute medical services. In the explanations dated August 4, 2023, attorney J. K. informed the supervisory authority that the Administrator, on (...) July 2023, responded to the Complainant's request for obtaining a copy of personal data being processed in accordance with Article 15(3) of Regulation 2016/679, which was substantiated by him with an attached copy of the letter dated (...) July 2023.

On August 17, 2023, attorney J. K., in response to the repeated summons from the President of the UODO in the administrative proceedings under case number DKE.561.5.2023 dated July 7, 2023, regarding the submission of information on the income achieved by the Administrator for the year 2022, submitted the Administrator's declaration of the amount of income (loss) achieved in the 2022 tax year (PIT-37) (see point 6 of the justification of this decision).

After reviewing all the evidence collected in the case, the President of the Office for Personal Data Protection...

****Personal Data Considerations****

****Legal Provisions****

Pursuant to Article 57(1)(a) of Regulation 2016/679, the President of the Personal Data Protection Office (UODO), as the supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. Within the scope of its competencies, the President of UODO, among other things, examines complaints lodged by the data subject or by an entity, organization, or association in accordance with Article 80, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f) of Regulation 2016/679) and conducts proceedings regarding the application of this regulation, including based on information received from another supervisory authority or another public authority (Article 57(1)(h) of Regulation 2016/679).

To enable the execution of the tasks defined above, the President of UODO is entitled to a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the proceedings conducted, including the power to order the controller and the processor to provide any information necessary for the execution of its tasks (Article 58(1)(a) of Regulation 2016/679) and the power to obtain from the controller and the processor access to all personal data and any information necessary for the execution of its tasks (Article 58(1)(e) of Regulation 2016/679).

A violation of the provisions of Regulation 2016/679, resulting in a breach of the powers of the authority specified in Article 58(1), is subject to an administrative fine of up to EUR 20,000,000, or in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable, in accordance with Article 83(5)(e) of Regulation 2016/679.

The President of UODO also has a number of remedial powers specified in Article 58(2) of Regulation 2016/679, including the right to issue a reprimand to the controller or processor in the event of a breach of the provisions of Regulation 2016/679 through processing operations. According to Recital 148 of Regulation 2016/679, to make the enforcement of the provisions of Regulation 2016/679 more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under Regulation 2016/679 by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, attention should be paid to the nature, gravity, and duration of the violation, whether the violation was intentional, the actions taken by the controller to minimize damage, the degree of responsibility or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

In accordance with Article 60 of the Personal Data Protection Act (u.o.d.o.), proceedings regarding violations of personal data protection regulations are conducted by the President of UODO. Furthermore, Article 7(1) of the u.o.d.o. states that in matters not regulated by this act, the provisions of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2023, item 775, as amended), apply to administrative proceedings before the President of UODO (including proceedings regarding the imposition of administrative fines referred to in Chapter 11 of the u.o.d.o.). According to Article 7(2) of the u.o.d.o., these proceedings are single-instance proceedings.

Documents are delivered to individuals at their residence or workplace or to the correspondence address indicated in the electronic address database (Article 42 § 1 of the Code of Administrative Procedure). In the event that it is impossible to deliver the document in the manner specified in Article 42 § 1 and 2 of the Code of Administrative Procedure, and also in case of necessary need, documents are delivered to any place where the addressee can be found (Article 42 § 3 of the Code of Administrative Procedure).

According to the wording of Article 44 § 4 of the Code of Administrative Procedure in connection with Article 44 § 1 of the Code of Administrative Procedure, the fiction of delivery occurs upon the expiration of the last day of the period, which is 14 days, in the case of delivering a document to an individual at their residence or workplace by a postal operator, and the document is left in the case files.

****Legal Assessment****

Relating the above-mentioned legal basis to the established factual state in this case, it should be acknowledged that Ms. S. P., as the personal data controller of the Complainant, being a party to the administrative proceedings under reference DS.523.4217.2022, violated the obligation to ensure that the President of UODO had access to personal data and information necessary for the execution of his tasks, which obligations arise directly from Article 58(1)(a) and (e) of Regulation 2016/679.

The President of UODO twice summoned the Administrator to provide explanations in order to establish the factual state of the case under reference DS.523.4217.2022 – by letters dated August 24, 2022, and September 21, 2022 – addressing the Administrator with a request to provide explanations by answering detailed questions regarding the case. However, the Administrator did not collect any of

the aforementioned letters, as a result of which they did not respond within the time frame set by the supervisory authority to the allegations raised by the Complainant, thereby preventing a comprehensive examination of the allegations (see points 2-3 of the justification of this decision). Only after the initiation of proceedings regarding the imposition of...

****Administrator of the Administrative Financial Penalty****

under reference number DKE.561.5.2023, in the course of which the Administrator also did not receive information about the initiation of proceedings and the collection of evidence on February 15, 2023, the Authority, by sending correspondence to the Administrator on April 5, 2023, to the addresses of the permanent places where he previously conducted business activities, where there was a high probability of reaching the Administrator (see points 7–8 of the justification of this decision), led to the Administrator obtaining information about the ongoing proceedings. The above-described delivery of correspondence was deemed by the President of the UODO as a necessary need to obtain access from the Administrator to personal data and information necessary to carry out his tasks, namely to establish the factual state of the case being examined under reference number DS.523.4217.2022 (see point 18 of the justification of this decision) (see Judgment of the NSA of July 6, 2018, I OSK 801/18, LEX no. 2528038). This led to the appointment by the Administrator of a proxy – attorney J. K. – in the present administrative proceedings, who, within the scope of his authorization, submitted explanations on behalf of the Administrator. At this point, it should be noted that the letter dated April 19, 2023, the explanations of the Administrator did not contribute to establishing the course of events in the case under reference number DS.523.4217.2022, but only led to an extension of the proceedings to obtain access to personal data and information necessary to establish the factual state of the case (see points 8–9 of the justification of this decision). The explanations provided by the Administrator did not contain answers to the detailed questions of the Authority, but only briefly referred to the cessation of the Administrator's processing of the Complainant's personal data. Only as a result of multiple calls from the supervisory authority to supplement the explanations did the Administrator submit extensive and substantive explanations in letters dated May 11, 2023, June 29, 2023, and August 4, 2023, which led to the establishment of the course of events in the case under reference number DS.523.4217.2022.

In the opinion of the President of the UODO, the lack of receipt of correspondence sent by the supervisory authority to the Administrator's residence address, i.e., ul. (...), N. (see points 2–3 and 6 of the justification of this decision) and the insufficient explanations provided by the Administrator's proxy on April 19, 2023, which did not contribute to establishing the factual state of the case under reference number DS.523.4217.2022, consequently led to an extension of the proceedings to establish the course of events in the case under reference number DS.523.4217.2022 (see points 8–9 and 22 of the justification of this decision), constitutes an obvious neglect on the part of the Administrator. This neglect led to a violation of Article 58(1)(a) and (e) of Regulation 2016/679, which consists of failing to provide the supervisory authority with access to personal data and information necessary to carry out its tasks. The violation of Article 58(1)(a) and (e) of Regulation 2016/679 – although highly reprehensible – was rectified by the Administrator after he became aware of the ongoing proceedings regarding the imposition of an administrative financial penalty, i.e., upon the submission of his additional explanations to the UODO on August 11, 2023. In the opinion of the President of the UODO, this violation was unintentional, as evidenced by the fact that the Administrator, after becoming aware of the ongoing administrative proceedings under reference number DS.523.4217.2022, submitted explanations through his proxy, which ultimately led to obtaining access to personal data and information necessary to establish the factual state of the case.

In light of the above, the President of the UODO deemed it justified to issue a reprimand to the Administrator regarding the identified violation of Article 58(1)(a) and (e) of Regulation 2016/679, while also accepting that in light of the criteria specified in Article 83(2) of Regulation 2016/679, it will be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Administrator will be taken into account when assessing the conditions for the legitimacy of imposing an administrative penalty, in accordance with the principles specified in Article 83(2) of Regulation 2016/679 and will be considered

to his detriment.

In this factual and legal context, the President of the UODO ruled as stated in the operative part of this decision.

****Instruction****

The decision is final. The Party has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw, within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is 200 PLN. In proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of an attorney, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's application submitted before the initiation of proceedings or during the proceedings. The application is free of court fees.

****Print Article****

****Metadata****

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Department of Penalties and Enforcement

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